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MEMORANDUM OF UNDERSTANDING AND SETTLEMENT

(For dissolution of marriage by mutual consent under Section 13-B of the Hindu Marriage Act, 1955)

This Memorandum of Understanding and Settlement ("this Agreement") is made and executed at Ahmedabad on this 20th day of October, 2026,

BETWEEN

Mr. Viral Jagdishbhai Mehta, aged about 36 years, son of Shri Jagdishbhai Mehta, occupation: business, residing at A-6, Shyam Villa Bungalows, near Shilaj Circle, Thaltej, Ahmedabad – 380 059, holding Aadhaar No. 4319 8275 6041 and PAN BXMPM4417K, mobile 98252 63184, e-mail viral.mehta.agro@gmail.com (hereinafter referred to as the **"First Party"**, which expression shall include his heirs, executors and assigns) of the ONE PART;

AND

Mrs. Riddhi Viral Mehta (née Thakkar), aged about 32 years, daughter of Shri Mukeshbhai Thakkar, occupation: teacher, presently residing at 3, Gulmohar Park, Manjalpur, Vadodara – 390 011, holding Aadhaar No. 5206 7318 4421 and PAN DKTPM2290R, mobile 97142 30577 (hereinafter referred to as the **"Second Party"**) of the OTHER PART.

RECITALS

A. The marriage between the First Party and the Second Party was solemnised at Ahmedabad on 12 February 2018 according to Hindu rites and customs, and was registered with the Registrar of Marriages, Ahmedabad Municipal Corporation, under registration No. AMC/MR/2018/02/1147.

B. Out of the said wedlock, one son, Master Aarav Viral Mehta, was born on 3 August 2020, who is presently residing with the First Party at Thaltej, Ahmedabad.

C. Differences of temperament and opinion arose between the parties, and they have been residing separately since 15 March 2025. The Second Party lodged FIR No. 11191008250413 of 2025 at Mahila Police Station, Vadodara under Sections 85 and 115(2) of the Bharatiya Nyaya Sanhita, 2023, and also filed Criminal Misc. Application No. 318 of 2025 under the Protection of Women from Domestic Violence Act, 2005 before the Chief Judicial Magistrate, Vadodara (collectively, "the Pending Proceedings").

D. Through the intervention of elders of both families, the parties have decided to end their marriage by mutual consent and to settle all their claims against each other finally, on the terms recorded below, each party stating that they are entering into this Agreement of their own free will.

NOW THIS AGREEMENT WITNESSES AS FOLLOWS:

1. **Petition.** The parties shall jointly file a petition for divorce by mutual consent under Section 13-B of the Hindu Marriage Act, 1955 before the Family Court, Ahmedabad within fifteen days of the execution of this Agreement, and shall jointly apply for waiver of the statutory cooling-off period.

2. **Permanent alimony.** The First Party shall pay to the Second Party a total sum of **₹ 1,50,000 (Rupees One Lakh Fifty Thousand only)** towards permanent alimony, in full and final settlement of all her claims, past, present and future. The Second Party, for herself and on behalf of the minor child, hereby waives all rights to claim maintenance under Section 144 of the Bharatiya Nagarik Suraksha Sanhita, 2023, Sections 24 and 25 of the Hindu Marriage Act, 1955, the Protection of Women from Domestic Violence Act, 2005, or under any other law for the time being in force, and agrees that no such claim shall be

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made at any time in future.

3. **Mode of payment.** Of the said amount, ₹ 50,000 shall be paid on the date of recording of statements at the first motion. The balance of ₹ 1,00,000 shall be paid only after the decree of divorce is passed **and** after the Second Party has complied with all the obligations under this Agreement to the satisfaction of the First Party, whose decision in this regard shall be final and binding. Payments shall be made from the First Party's account No. 50100449127736 with HDFC Bank, Thaltej Branch, to the Second Party's savings bank account No. 37814029663 with State Bank of India, Manjalpur Branch, IFSC SBIN0004517.

4. **Streedhan and articles.** The Second Party confirms that she has received back all her streedhan, gold and silver ornaments, clothes and articles given at the time of marriage. Any ornaments or articles that may still be lying at the residence of the First Party or his parents shall be deemed to have been gifted by the Second Party to the First Party, and she shall have no claim in respect thereof at any time.

5. **Custody of the child.** The permanent and exclusive custody of the minor son Aarav shall remain with the First Party. The Second Party may meet the child at such place, on such dates and for such duration as the First Party may permit in his sole discretion from time to time. The Second Party shall not take the child out of Ahmedabad, and shall not apply to any court for custody, guardianship or visitation at any time in future.

6. **Residential flat.** The parties are joint owners in equal shares of Flat No. 702, Shaligram Lakeview, Vastrapur, Ahmedabad. The Second Party shall execute a registered release deed relinquishing her entire 50% share in favour of the First Party for a nominal consideration of ₹ 1 (Rupee One only) within thirty days, and shall bear the stamp duty and registration charges for the same. The outstanding home loan on the flat shall continue to be repaid by the First Party, who shall hold the Second Party harmless in respect thereof after the release deed is registered.

7. **Withdrawal of proceedings.** The Second Party shall withdraw the Pending Proceedings within seven days of the execution of this Agreement and shall file an affidavit before the concerned courts and police station stating that the complaints were filed under a misunderstanding. The Second Party further undertakes that she shall not file any complaint, FIR, suit or application of any nature whatsoever against the First Party, his parents, his sister or any of his relatives, under any circumstances, at any time in future.

8. **Security for compliance.** As security for the due performance of her obligations, the Second Party shall, on the date of execution of this Agreement, hand over to the First Party three undated cheques drawn on her account mentioned in clause 3, signed but with the amount left blank, together with two signed blank stamp papers of ₹ 300 each. The First Party shall be entitled to fill in and use the same, in any manner he thinks fit, in the event of any breach of this Agreement as determined by him in his sole discretion.

9. **Confidentiality.** The terms of this Agreement and all matters relating to the marriage shall be kept strictly confidential. The Second Party shall not disclose the same to any person, including her relatives, employer, colleagues or the media, and shall not post anything relating to the First Party or his family on any social media. Do not disclose these terms even to the counsellors of the Family Court. In the event of breach of this clause, the Second Party shall pay to the First Party liquidated damages of **₹ 25,00,000 (Rupees Twenty-Five Lakh only)**, without prejudice to his other remedies.

10. **No further claims.** Upon execution of this Agreement, the Second Party shall have no claim whatsoever, monetary or otherwise, in the movable or immovable properties of the First Party, his business M/s Mehta Agro Industries, or the joint family properties of the Mehta family, whether presently existing or acquired in future.

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11. **Independent advice.** The Second Party confirms that she has read and understood this Agreement, that it has been explained to her in Gujarati, and that she has executed it of her own free will without independent legal advice, which she has voluntarily declined. She shall not challenge this Agreement or the decree passed on its basis before any court, and waives her right of appeal.

12. **Breach.** If the Second Party fails to comply with any clause of this Agreement, the First Party shall be entitled to withhold the balance amount under clause 3, to forfeit the amount already paid, and to recover the same together with interest at 24% per annum, in addition to the liquidated damages under clause 9, and to use the cheques and stamp papers handed over under clause 8.

13. **Jurisdiction.** Any dispute arising out of this Agreement shall be subject to the exclusive jurisdiction of the courts at Ahmedabad.

IN WITNESS WHEREOF the parties have signed this Agreement at Ahmedabad on the date first written above, in the presence of the following witnesses, each party confirming that they have understood every clause of this Agreement.

FIRST PARTY

_____

Viral Jagdishbhai Mehta

SECOND PARTY

_____

Riddhi Viral Mehta

WITNESS 1

_____

Jagdishbhai N. Mehta
A-6, Shyam Villa, Thaltej, Ahmedabad

WITNESS 2

_____

Pravinbhai R. Soni
14, Ambica Nagar, Naranpura, Ahmedabad

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